



**DEPARTMENT OF THE NAVY**  
NAVAL AIR SYSTEMS COMMAND  
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V22  
CJ&A 21-0339

**CLASS JUSTIFICATION AND APPROVAL  
FOR USE OF OTHER THAN FULL AND OPEN COMPETITION**

1. Contracting Activity. Naval Air Systems Command (NAVAIR) Headquarters
2. Description of the Action Being Approved. This Class Justification and Approval (CJ&A) authorizes and approves the issuance of orders on a sole-source basis to General Atomics (GA) under the establishment of a follow-on basic ordering agreement (BOA). The BOA orders will be for supplies and services required to support U.S. Navy (USN) Advanced Arresting Gear (AAG) and Electromagnetic Aircraft Launch System (EMALS) requirements. The authority to act under this CJ&A expires on June 23, 2026.
3. Description of Supplies/Services. Orders placed under the BOA will support the development, production, integration, reliability, and sustainment of all EMALS and AAG systems and subsystems. The USN delivered the USS GERALD R. FORD (CVN 78) to the fleet in 2017 and is on schedule to deliver USS JOHN F. KENNEDY (CVN 79) in June 2024. NAVAIR will execute orders on this GA BOA to support and sustain AAG and EMALS on these aircraft carriers. NAVAIR anticipates acquiring the following supplies and services to support the USN requirements:
  - a) Design, development, manufacture, assemble, test, prototype, calibrate, produce and install engineering change proposals (ECPs) for hardware and software configuration changes, forward-fit upgrades and/or retrofit kits, including but not limited to associated program management, operations security and cybersecurity compliance, anti-tamper, non-recurring engineering (NRE), systems engineering, production planning integrated logistics and product support, training, logistics forecasting, life-cycle support, and demilitarization efforts; development, validation, verification, and/or revision of technical publications/manuals/maintenance procedures/engineering drawings/technical directives, and associated logistics impacts; production, modification, calibration, and repair of ancillary, government-furnished equipment, spare/repair parts, special tooling, subsystems, training devices and support equipment (including peculiar support equipment); and training services.
  - b) Depot planning, stand-up, and associated requirements.
  - c) Investigation and trade studies such as system-level performance analysis, feasibility studies, integration/interchangeability studies, joint strategic planning/roadmap development, cost reduction studies and logistics support/sustainment planning.
  - d) Software development infrastructure support related to systems and subsystems including training device upgrades, and lab maintenance and support.

- e) Test and Evaluation support including experimentation to support but not limited to system performance, computer software, aircraft interface, electromagnetic environmental effects, fatigue testing, qualification, characterization, fatigue engineering, modeling and simulation, laboratory simulations, data processing/analysis/collection, technical publication source data, associated test plans and land-based site testing.
- f) Worldwide fleet technical support, including engineering, logistics, and maintenance (operational, intermediate, or depot-level) to produce failure reporting and corrective action systems analyses, engineering investigations, fatigue analyses, and feasibility and integration studies or efforts; service-life assessments, extensions, modifications and materials incidental to engineering investigations, e.g. inspections, tests, calibrations, or repair, modification and restoration to ready-for-issue condition of parts.
- g) Over and above efforts. During the performance of maintenance actions or ECP installations, technical and/or repair issues may emerge which could not have been foreseen at time of delivery order award. Over and above effort will be used to correct these issues provided the work to be accomplished is both within the scope of the delivery order and relatively low in cost compared to the total value of the delivery order. Emergent efforts that fall outside of these parameters will be the subject of a separate delivery order.
- h) Obsolescence mitigation and management requirements, including life-of-type purchases.
- i) Delivery of technical, financial, and administrative data associated with the above efforts.

The Contracting Officer will define the associated quantities, periods of performance, and delivery requirements for each order. NAVAIR will use fiscal year (FY) 2021 – FY 2026 Research, Development, Test and Evaluation (RDT&E); Operations and Maintenance, Navy (O&M, N); Other Procurement, Navy (OPN) appropriations as delineated in the table below:

| APPN (\$M)   | FY 2021 | FY 2022 | FY 2023 | FY 2024 | FY 2025 | FY 2026 | Total |
|--------------|---------|---------|---------|---------|---------|---------|-------|
| RDT&E        |         |         |         |         |         |         |       |
| O&M,N        |         |         |         |         |         |         |       |
| OPN          |         |         |         |         |         |         |       |
| <b>Total</b> |         |         |         |         |         |         | *     |

\* The CJ&A ceiling value is less than the estimated funding requirements documented in the corresponding GA BOA ISTRAP-M (PMA-251-2020-11-25-092030-R0). The BOA will also support delivery orders for foreign military sales (FMS) requirements, not covered under this CJ&A. NAVAIR will write determinations and findings when using other than full and open competition under FAR 6.302-4.

4. Statutory Authority Permitting Other Than Full and Open Competition.

10 U.S.C. 2304(c)(1), Only one responsible source and no other supplies or services will satisfy agency requirements.

5. Rationale Justifying Use of Cited Statutory Authority. In accordance with Federal Acquisition Regulation (FAR) 6.302-1(a)(2)(ii)(A), the Government has deemed the

requirements listed above for the continued development or production of a major system and continued provision of highly specialized services to be available only through the original source and award to any other source would result in substantial duplication of cost to the Government that is not expected to be recovered through competition.

In all efforts except depot-related efforts under this CJ&A, development (design and test) work will be required. The Government does not have sufficient technical data to provide a second source to support completing the efforts cited above. After the Program Definition and Risk Reduction phase, NAVAIR conducted a limited competition and selected a single design. NAVAIR awarded cost-type contracts to GA Electromagnetics Systems (EMS) Division for further development during the EMALS and AAG System Development and Demonstration (SDD) phase. NAVAIR awarded the AAG SDD contract to GA-EMS in 2003 and awarded the EMALS SDD contract to GA-EMS in 2004. The Government did not acquire production-level technical data packages (TDPs) for the EMALS and AAG systems under the SDD contracts. Historically, PMA 251 has used the GA BOA for ECP follow-on retrofit requirements wherein GA performs the NRE, kit production and installation. Since GA designs and incorporates the engineering changes, all other sources lack the technical data, engineering knowledge, and experience that is inherent to GA as the original equipment manufacturer.

Therefore, the Government does not possess adequate EMALS and AAG TDPs to support a competitive procurement. Only GA possesses the unique and specialized engineering capability, resources, subject matter expertise, tooling, facilities, and manufacturing techniques critical to satisfy the Government's minimum requirements. Furthermore, only GA has the established supplier base as well as the management, engineering and manufacturing processes that are critical for the continued support of these requirements. Based on actuals for SDD efforts, the estimated duplication of costs for NRE for the AAG efforts being procured would be between [REDACTED]. In the case of EMALS efforts, based on actuals, the estimated duplication of costs is between [REDACTED]. Neither estimate of which are expected to be recouped through competition.

For depot-related efforts, the Government would incur substantial duplicative costs if another source were competitively awarded contracts for these efforts. Specifically, the depot stand-up is based on the efforts completed by GA in AAG and EMALS Depot Planning Phase I, and tasking GA is currently under contract to complete under AAG and EMALS Depot Planning Phase II. Therefore, the Government does not possess adequate data to provide to alternate source. Based on the contract actuals for Depot Planning Phases I and II, the estimated duplication of cost would be [REDACTED] for AAG and [REDACTED] for EMALS, which are not expected to be recouped through competition.

In sum, NAVAIR does not reasonably expect to recover the aforementioned costs through competition. In fact, NAVAIR estimates these values represent the minimum costs required for a competitive source. Therefore, NAVAIR has determined GA is the only responsible source capable of meeting the agency's requirements.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable. In accordance with Defense Federal Acquisition Regulation Supplement (DFARS) Procedures, Guidance, and Information (PGI) 206.302-1(d), NAVAIR posted a source-sought notice/request for information on beta.SAM.gov for the BOA on January 14, 2021, and has not received any responses. In accordance with FAR 16.703(d)(2)(iv), the Contracting Officer will post a

synopsis on beta.SAM.gov for each order, evaluate any offers received prior to contract award, and refer any interested parties to GA subcontracting managers for possible subcontracting opportunities.

In addition, the integrated product teams will conduct market research for each anticipated order to determine if alternate sources exist to satisfy the requirements. The market research process may involve posting sources sought announcements on beta.SAM.gov, conducting internet searches using common search engines and government sources, and contacting government and industry sources for information related to the proposed requirement. The extent and results will vary for each BOA order. However, NAVAIR will only execute orders on the BOA after determining GA is the only responsible source for satisfying the requirements.

7. Determination of Fair and Reasonable Cost. The Contracting Officer has determined the anticipated cost to the Government of the supplies/services covered by this CJ&A will be fair and reasonable.

8. Actions Taken to Remove Barriers to Competition. For the reasons set forth in paragraph five, NAVAIR has no plans at this time to compete future contracts for the types of supplies/services covered by this document. NAVAIR will continue to assess the market and determine if competitive acquisitions for these requirements are feasible.

Because this is a follow-on effort for supplies and services previously awarded on a non-competitive basis, in accordance with DFARS PGI 206.304(a)(i), the prior CJ&A was provided to the approval authority for review. Approval of this CJ&A signifies the approval authority has made the determination required by DFARS PGI 206.304(a)(ii).